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Tentative Ruling

Re: **Carillo v. Jireh Packing Company**
Superior Court Case No. 24CECG01937

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To deny, without prejudice.

The court sets the matter for a status conference on Tuesday, December 15, 2026 at 3:30 p.m. in Department 403. The parties are to file a declaration regarding the status no later than November 17, 2026.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (*Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 336.)

The court previously vetted the fairness of the settlement through prior hearings, each with its own filings. While the court granted preliminary approval of the class action settlement on January 30, 2026, this was as to an estimated class of 188 members. In this motion for final approval, the class size has dramatically increased by more than double the amount to 436 class members. As the court's preliminary approval as to the fairness of the settlement was based on a significantly smaller class than is now presented, plaintiff will need to address how the same settlement amounts remain fair. Additionally, the court is concerned that the expert also relied on an estimated class of 188 class members in evaluating the claims here. (Berger Decl., filed January 9, 2026, ¶ 7.) In light of this, the court has serious misgivings regarding whether this settlement remains fair. Thus, the motion is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 24, 2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Stevens v. Delray Tire & Retreading, Inc.**
Superior Court Case No. 23CECG02097

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To grant, but limit the attorney fee award to \$69,150. The difference shall be added to the net settlement to be distributed to the settlement class members. Class counsel shall submit to the court a proposed judgment consistent with the law and motion order within seven days of service of the minute order by the clerk.

To also order the parties to return on Thursday, February 11, 2027, at 3:30 p.m. in Department 403 to inform the court of the total amount actually paid to the class members, pursuant to Code of Civil Procedure section 384, subdivision (b), so that the judgment can be amended and the distribution of any cy pres funds can be ordered. Documentation as to the amount paid to class members must be filed on or before January 28, 2027.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 336.)

The court has vetted the fairness of the settlement through prior hearings, each with its own filings. The settlement here generally meets the standards for fairness, and the class has approved it, with no objections, disputes, or requests for exclusion. Only 10 of 120 notices were undeliverable. The court finds that the method of notice followed, which this court approved at the prior hearing, comports with due process and was reasonably calculated to reach the absent class members:

"Individual notice of class proceedings is not meant to guarantee that every member entitled to individual notice receives such notice," but "it is the court's duty to ensure that the notice ordered is reasonably calculated to reach the absent class members." [Citations.] After such appropriate notice is given, if the absent class members fail to opt out of the class action, such members will be bound by the court's actions, including settlement and judgment, even though those individuals never actually

receive notice. Cooper, 467 U.S. at 874, 104 S.Ct. 2794; 7B Charles Alan Wright, Arthur R. Miller & Mary Kay Kane, *Federal Practice and Procedure* § 1789 (2d ed.1986).

(*Reppert v. Marvin Lumber and Cedar Co., Inc.* (1st Cir. 2004) 359 F.3d 53, 56-57 emphasis added.)

Calculation of Class Member Payments

Based on the number of class members known to be participating, Ms. Islas of Phoenix Settlement Administrators calculates the net settlement fund to be \$149,440.83 after deducting attorney fees and costs, the administration costs of \$6,750, and the class representative award totaling \$7,500. (Islas Decl. ¶ 13.) The highest estimated class payment is \$3,713.68, the average payment is \$1,245.34, and the lowest estimated payment is \$11.51. (Id. at ¶ 14.)

Payment to Class Representatives

Plaintiff seeks court approval of a \$7,500 payment to the named class representative, Matthew Stevens. The court intends to approve the requested enhancement payment of \$7,500 to the named plaintiff. Mr. Stevens has provided sufficient detail in his declaration justifying this amount in this instance. Mr. Stevens worked for defendant for over a decade. (Stevens Decl., ¶ 6.) He spent considerable time in assisting with this case. (Id. at ¶ 7.) He notes that he has been seeking new employment since February 2025 and has faced rejection since participating in this matter. (Id. at ¶ 6.) This represents a reasonable amount, commensurate with the evidence of risk incurred in conferring a benefit to the class and sufficient to induce the named plaintiff to participate in the suit.

Attorneys' Fees

The settlement provided that the parties agreed to fees calculated at one-third of the gross settlement amount or \$83,333.33. An Escalator Clause was triggered when calculating the number of actual workweeks, increasing the anticipated settlement amount from \$250,000 to \$265,624.72. Thus, counsel seeks \$88,541.57 in attorney's fees consistent with the increased settlement amount. Counsel has provided evidence of the time expended by the attorneys representing plaintiff and the class throughout this action to support the lodestar amount, as a cross-check of the percentage-based fees requested.

As a general rule, the lodestar method is the primary method for calculating the amount of class counsel's attorney's fees; however, the percentage-of-the benefit approach may be proper when there is a common fund. In some cases, it may be appropriate, when the monetary value of the class benefit can be determined with a reasonable degree of certainty, such as this one, for the judge to cross-check or adjust the lodestar amount in comparison to a percentage of the common fund to ensure that the fee awarded is reasonable and within the range of fees freely negotiated in the legal marketplace in comparable litigation. (See *Laffitte v. Robert Half Int'l, Inc.* (2016) 1 Cal.5th

480, 488–497; *Roos v. Honewell Int'l, Inc.* (2015) 241 Cal.App.4th 1472, 1490–1494; *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 557.)

The lodestar analysis is based on a "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, italics added; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1134.) Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Id.* at p. 1133.) The hourly rates are high for Fresno County and plaintiff has not explained why he retained out of town counsel.

Counsel have submitted evidence of the hours expended during litigation by seven attorneys. Counsel worked 159.7 hours at hourly rates ranging from \$600 to \$1,500 for an estimated \$139,870 in attorney fees. As noted, these billing rates are high. The court is inclined to adjust the hourly billing rates for counsel to \$600 per hour for John G. Yslas, \$500 per hour for Jeffrey C. Bils, \$450 per hour for Diego Aviles, \$375 per hour for Courtney M. Miller, and \$350 per hour for Aram Boyadjian, Harry Erganyan, and Mariam Nazaretyan.

With the adjusted billing rates, the court sets the lodestar at \$69,150. The court will approve \$69,150 for attorneys' fees. The remainder of attorney's fees reserved should be returned to the common fund for the benefit of the class members.

Costs

The Settlement Agreement provides that plaintiff's counsel would be reimbursed costs up to \$20,000.00. The request for actual costs of \$13,392.32 is supported with evidence and will be approved. (Yslas Decl., Exh. 3.)

Administrator's Costs

The court intends to find the amount of \$6,750 as requested for Phoenix Settlement Administrators to be reasonable, and approve the administrator's costs as requested.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 24, 2026.
(Judge's initials) (Date)